Harris County District Court

Cause No. 2024-CV-0018

Lisa Mcdaniel, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	July 14, 2024
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

PARTIES

Plaintiff Lisa Mcdaniel is an individual who resided in Texas at all times relevant to this petition. Defendant is an automobile liability insurer authorized to write motor vehicle policies in the State of Texas, which issued the policy covering the at-fault driver involved in the collision described below. Defendant may be served through its registered agent in accordance with the Texas Rules of Civil Procedure.

FACTS

On December 9, 2023, Plaintiff was lawfully operating her vehicle on a public roadway in Sugar Land, Texas. The at-fault driver, insured under Defendant's policy, was traveling in an adjacent lane and began changing lanes without first confirming that the lane was clear. The insured's vehicle struck the side of Plaintiff's vehicle, forcing it toward the shoulder. Plaintiff braced herself against the steering wehel and her right arm absorbed the impact. Responding officers documented the collision, and Plaintiff sought medical treatment the same day. Following the collision, Plaintiff presented a claim to Defendant for benefits and damages arising from the crash, and Defendant has not made a full and fair payment.

NEGLIGENCE

The at-fault driver owed a duty to other motorists to operate a vehicle with reasonable care, including maintaining a proper lookout, signaling intent, and changing lanes only when it could be done safely. That drievr breached this duty by changing lanes into an occupied lane without yielding. The breach was the proximate cause of the collision and Plaintiff's resulting injuries. Defendant, as the liability insurer of that driver, is answerable to Plaintiff under the terms of the policy and applicable Texas law for the insured's negligence within the limits of coverage.

DAMAGES

As a direct result of the collision, Plaintiff suffered a fracture of the wrist that required immobilization, medical imaging, and ongoing treatment. Plaintiff has incurred past and future medical expenses, lost earning capacity while unable to perform her duties, physical pain, mental anguish, and impairment of the use of her arm. Plaintiff therefore seeks actual damages in the amount of $50,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which she may be entitled.